



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 28 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11063
(THIRD REVISION)

EXPIRATION DATE: February 28,
1999

1. GRANTEE: United Parcel Service of America, Inc. (UPS), Atlanta, Georgia, and persons offering hazardous materials to UPS for transportation.
2. PURPOSE AND LIMITATION: This exemption authorizes the offering and acceptance of hazardous materials for transportation, and the transportation of hazardous materials by aircraft and by motor vehicle and rail freight incident to transportation by aircraft, when the hazardous materials are certified on a shipping paper by a shipper's certification containing the wording prescribed in paragraph 8. below, and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Parts 170 through 180, relating to the required wording of the shipper's certification only, as described in Paragraph 7.a. below. In addition, 49 CFR 172.203(a) relating to the required marking of the exemption number on packages and shipping papers is waived.
5. BASIS. This exemption is based on United Parcel Service of America, Inc.'s application dated January 17, 1997 submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101): Hazardous materials of all hazard classes permitted by the regulations to be transported by aircraft.

PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.

No Renewal
NOT Active

7. SAFETY CONTROL MEASURES:

a. A shipper's certification containing the following language may be used as an alternative to the certification language required by 49 CFR 172.204:

"This is to certify that the above named materials are properly classified, packaged, marked and labeled, and are in proper condition for transportation according to the applicable regulations of the Department of Transportation and the requirements of United Parcel Service."

b. The alternative form of shipper's certification provided in paragraph a. above, may only be used when pre-printed on shipping papers bearing the UPS company stock number 01111401, accompanied by the date of printing "4/93" and the code "W", in the lower left corner.

c. Only pre-printed shipping papers identified with the stock number and associated notations indicated in paragraph b. above, that were printed in April 1993 are authorized by this exemption.

8. SPECIAL PROVISIONS. A copy of this exemption must be maintained at the principal place of business of UPS and of each of its agents accepting or transporting hazardous materials under terms of this exemption and, upon request, must be provided to any person offering hazardous materials for transportation under the alternative form of shipper's certification authorized for use in this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, passenger-carrying aircraft and cargo aircraft only.

10. MODAL REQUIREMENTS. No modal-specific requirements are required by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws, 49 U.S.C. Section 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 et seq., when applicable.

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No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. None.

Issued at Washington, D.C.:

Ann Mazza

2/28/97

for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FRA, FAA.